



File No.: EXP202301163

## RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

### FACTS

FIRST: On January 10, 2023, a complaint was filed with registration number \*\*\*COMPLAINT.1 and \*\*\*COMPLAINT.2 before the Spanish Agency for Data Protection against SITEL IBÉRICA TELESERVICIOS, S.A. with NIF A81477093 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that on December 20, 2022, they were notified by the complained party, the company where they are employed, of the imposition of a disciplinary sanction based on footage from surveillance cameras located in the complainant's workplace, about which they were not informed, nor were the other employees, as they raised a query with the Works Committee on this point, who informed them that neither they nor the employees were informed about the installation of this system and its purpose.

The complainant provides a copy of the communication of the disciplinary sanction, an image of the camera's location in the access area to the facilities, and a certificate from the Works Committee stating that they were not informed of the installation of the surveillance system (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party on January 10, 2023, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: On March 24, 2023, a response was received from the complained entity regarding the requests made by this agency, which are summarized in the following aspects:

- There are a total of 9 cameras located at the accesses to floors 1, 2, and 4.
- Sitel has implemented technical and organizational security measures in compliance with ISO 27001, data protection regulations, and the company's internal policies, to ensure that only authorized personnel have access to the images and recordings stored in the surveillance system.
- The surveillance cameras are not used for labor control.
- Appendix I provides documentary evidence (photographs) with the presence of an approved informational sign indicating it is a .

FOURTH: On April 10, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

### LEGAL GROUNDS

I

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In this case, we proceed to examine the complaint dated January 10, 2023, submitted to this Agency, which concerns the "use of images from the camera system installed by the complained party" without informing, according to the complainant's statement, of their presence.

Before addressing the substance of the matter, it should be noted that this agency will not assess issues related to the validity or invalidity of the evidence obtained by the system in question, which will be evaluated in the context of a sanctioning procedure, as this is not a matter within the jurisdiction of this Agency.

The facts, therefore, focus on issues related to the duty to inform about the presence of the installed cameras.

"The Works Committee confirms to me by certificate (attached) that they are aware that there have been cameras since April 20, 2022, as they filed a complaint with the company's management. The installation of the cameras has not been communicated to the Committee itself or to the employees. While it is true that weeks later they put up the typical yellow sign on the side, it is only visible once you enter the premises and never before" (page 1 of the Complaint to this Agency).

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With the entry into force of the GDPR and LOPDGDD, relevant aspects of Spanish legislation have been modified that directly influence the rights of workers in relation to video surveillance, as seen in the transcribed Article 89 of the LOPDGDD "Right to privacy against the use of video surveillance and sound recording devices in the workplace," which establishes:

"1. Employers may process images obtained through camera or video camera systems for the exercise of the control functions of workers or public employees provided for, respectively, in Article 20.3 of the Workers' Statute and in public service legislation, provided that these functions are exercised within their legal framework and with the inherent limits thereof. Employers must inform, in advance and in an express, clear, and concise manner, workers or public employees and, where applicable, their representatives, about this measure.

In the event that the commission of a flagrant unlawful act by workers or public employees has been captured, the duty to inform shall be deemed fulfilled when at least the device referred to in Article 22.4 of this organic law exists.

2. Under no circumstances shall the installation of sound recording systems or video surveillance in places designated for the rest or recreation of workers or public employees be permitted, such as changing rooms, restrooms, dining rooms, and similar places (\*the bold text belongs to this agency). The aforementioned provision addresses the issue of video surveillance in the workplace, allowing employers to process the obtained images, but only "for the exercise of the control functions of workers or public employees" provided for in the law with the inherent limits thereof, prohibiting the installation of such devices in places designated for the rest or recreation of workers or public employees "such as changing rooms, restrooms, dining rooms, and similar places."

The law also provides for the case of the accidental discovery of the "flagrant commission of an unlawful act by workers," in which case "the duty to inform shall be deemed fulfilled when at least the device referred to in Article 22.4 of this Organic Law exists," that is, through the placement of an informative device in a sufficiently visible location (the video surveillance sign or device that meets the standards provided for in the regulation).

This sign must be placed in a visible location and inform at least that image processing will take place, the identity of the responsible party, as well as the possibility of exercising rights over the images, primarily access, rectification, limitation of processing, and deletion.

Both parties agree in their statements before this agency, the claiming party confirms the presence of an informative sign (they placed the typical yellow sign on one side) and the responding party in their written response to this Agency provides documentary evidence that they have a certified sign indicating visibly at the entrances that it is a video-monitored area.

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## III

The facts that justify the use of images from the monitors by the defendant (Employer/business) are specified in the very Warning issued to the worker (claimant), who provides a copy of it to this agency: "manipulation of access to leave the complex without making the mandatory check-in."

Upon confirming the manipulation of one of the accesses by the defendant, verification was carried out due to the fear of a criminal act on the premises or a security incident therein, subsequently verifying that the purpose of the manipulation was to evade the control mechanisms implemented by the defendant Company.

Article 5, section 1, letter a) of RDL 2/2015, of October 23, which approves the consolidated text of the Workers' Statute.

Workers have the following basic duties: a) To comply with the specific obligations of their job position, in accordance with the rules of good faith and diligence.

Therefore, the images obtained from the system are not for the purpose of conducting labor control, but rather access to them was made due to the manipulation of one of the access doors, based on a rational fear of actions against the premises and/or goods of the defendant, which justifies access to the images contained in the recorder.

In this case, the duty to inform about the presence of cameras with the informative sign at the accesses to the facilities is considered fulfilled, as the entire group of workers at the mentioned center was aware of them, given their visible location.

It should also be noted that, under certain circumstances, the ECtHR (Grand Chamber) on October 17, 2019 (López Ribalda II), accepts that the company does not inform the worker of the existence or location of certain surveillance cameras, without this leading to the nullity of the surveillance evidence that supports and substantiates the sanction against the worker.

Furthermore, without delving into the extensive jurisprudence established on this matter, the Supreme Court has consolidated the doctrine in this regard (e.g., recent STS 1233/2022, case number 1288/2020), establishing that the use of images captured by surveillance cameras in the workplace is valid evidence for the disciplinary dismissal of a worker.

Finally, there is no intention to carry out "labor control," nor were the cameras installed for that purpose, implementing additional labor control measures; the initial justification for accessing the system's images was security reasons due to the manipulation of an access door of the facilities, with the consequent risk to the premises and/or belongings of the employer company; confirming through them that an employee had manipulated them in order to "evade the labor control" installed and internal regime measures established by the company (defendant).

## IV

According to the arguments presented and the evidence provided, the presence of informative signs clearly indicating that it is a video-surveilled area at the time the events occurred is confirmed, which excludes the possibility of an infringement regarding data protection, justifying the filing of the present procedure.

All of this is without prejudice to any considerations that may be made by the appropriate judicial instances in the assessment of the facts presented in light of the evidence provided and in accordance with the jurisprudential criteria cited in this resolution.

In accordance with the above, the Director of the Spanish Agency for Data Protection, IT IS AGREED: FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to SITEL IBÉRICA TELESERVICES, S.A. and to the claimant.

In accordance with Article 50 of the LOPDGGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative

Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

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